

February 07, 2020



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20858
(FIRST REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of liquefied gas in specialized cylinders, intended for veterinary and medical use, as limited quantities. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.306(a)(1) in that containers must not exceed 4 fluid ounces capacity, except as specified herein.
5. BASIS: This special permit is based on the application of CryoConcepts, LP dated December 5, 2019, submitted in accordance with § 107.105 and the public proceeding thereon.

Tracking Number: 2019124314

February 07, 20206. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Liquefied gas, n.o.s. (Pentafluoroethane, difluoromethane)	2.2	UN3163	N/A
Consumer Commodity*	ORM-D	N/A	N/A

*Renaming and reclassification to Consumer Commodity, ORM-D is only authorized until December 31, 2020.

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packagings prescribed are seamless aluminum cylinders designed, manufactured, and marked in accordance with UN ISO 7866 standard. These cylinders are fitted with a modified C-10 valve without a pressure relief device. The cylinder rated service pressure is 1800 psig and water capacity is not more than 9.8 fluid ounces (0.29L).

b. REQUALIFICATION: For continued use, each seamless aluminum cylinder must be periodically requalified in accordance with ISO 10461 at intervals as specified in 49CFR § 180.207, Table-1.

b. OPERATIONAL CONTROLS:

(1) The product is intended for veterinary and medical use.

(2) Only a qualified filler may fill and leak test new and returned empty cylinders in accordance with the CryoConcepts Leak Check Procedure on file with the Office of Hazardous Special Permits and Approvals (OHMSPA).

(3) The filling density may not exceed 85 percent. In addition, the liquid content of the lading may not completely fill the cylinder at 130°F (54.4 °C).

(4) The pressure of the lading at 68°F (20°C) may not exceed 195 psig; and at 130°F (54.4 °C), may not exceed 477 psig.

(5) The cylinders must be shipped in strong outer packagings in accordance with § 173.301(a)(9).

(6) Each completed package may not exceed 66 pounds (30 kg) gross weight.

c. MARKING: Each outer package must be plainly and durably marked "DOT-SP 20858" as specified in § 172.301(c).

8. SPECIAL PROVISIONS:

a. Cylinders shipped under the terms of this special permit may be shipped as limited quantities in accordance with § 173.306(i).

b. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle, rail freight, and cargo vessel used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

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- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator

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for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover

Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Andrew Eckenrode